

STATE OF NEW YORK

2139--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 15, 2025

Introduced by M. of A. BERGER, LAVINE, STERN, WEPRIN, DINOWITZ, SAYEGH, KAY, HEVESI, YEGER, EICHENSTEIN, ROZIC, PAULIN, GLICK, WIEDER, PHEFFER AMATO, SLATER, SHIMSKY, WOERNER, McMAHON, CONRAD -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil rights law, in relation to enacting the "Honoring Our Pledge to Eliminate Antisemitism (HOPE) act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "Honoring
2 Our Pledge to Eliminate Antisemitism (HOPE) act".

3 § 2. Legislative intent. It is the intent of the legislature to ensure
4 that individuals of Jewish faith, heritage, or identity are fully
5 protected from discrimination. This act is not intended to infringe upon
6 the First Amendment rights guaranteed by the United States Constitution,
7 nor the free speech protections afforded under the Constitution of the
8 state of New York.

9 § 3. The civil rights law is amended by adding a new section 79-r to
10 read as follows:

11 § 79-r. Adoption of the International Holocaust Remembrance Alliance
12 definition of antisemitism. 1. As used in this section, the following
13 terms shall have the following meanings:

14 (a) "Antisemitism" shall have the same meaning as provided for in the
15 working definition of antisemitism adopted by the International Holo-
16 caust Remembrance Alliance (IHRA) on May twenty-sixth, two thousand
17 sixteen, and shall include the contemporary examples of antisemitism set
18 forth therein.

19 (b) "State agency" shall mean any office, department, board, commis-
20 sion, bureau, division, public corporation, agency or instrumentality of
21 the state.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. In reviewing, investigating, or deciding whether there has been a
2 violation of any rule or policy prohibiting discriminatory acts, a state
3 agency shall take into consideration the definition of antisemitism as
4 set forth in this section for purposes of determining whether an alleged
5 act was motivated by discriminatory antisemitic intent, including but
6 not limited to claims brought pursuant to article fifteen of the execu-
7 tive law.

8 3. A state agency shall apply the same legal standard as applicable to
9 like claims of discrimination arising under laws of this state, includ-
10 ing article fifteen of the executive law.

11 4. For the purposes of training of state personnel related to discrim-
12 ination and anti-bias training, the definition of antisemitism described
13 in this section shall be used as an educational tool to familiarize
14 staff and officials with antisemitism.

15 § 4. This act shall take effect immediately.